TERMS OF BUSINESS

These Terms of Business are made between Thornbury Digital Ltd, company number 00000000, whose registered office is at 1 Example Lane, Exampletown EX1 1EX ("Supplier"), and the client named in the order form ("Client").

1. Services. the Supplier will provide the services described in each statement of work signed by the parties (each, an "SOW"). Each SOW is incorporated into this Agreement by reference. If this Agreement conflicts with an SOW, this Agreement controls unless the SOW expressly identifies the provision of this Agreement it modifies. the Supplier may use employees and approved subcontractors to perform the Services and remains responsible for their work.

2. Client Responsibilities. the Client will provide timely access to the information, personnel, systems and premises reasonably required for the Supplier to perform the Services, and is responsible for the accuracy and completeness of all information it provides. Delays caused by the Client's failure to meet these responsibilities may extend the schedule and may result in additional fees at the Supplier's then-current rates.

3. Fees and Payment. the Client will pay the fees set out in the applicable SOW. Unless an SOW states otherwise, the Supplier will invoice monthly in arrears and each invoice is due within thirty (30) days of its date. Late amounts accrue interest at the lesser of one percent (1%) per month or the highest rate permitted by law. the Supplier may suspend the Services on ten (10) days' written notice if an undisputed invoice remains unpaid more than thirty (30) days after its due date.

4. Expenses. the Client will reimburse reasonable, pre-approved travel and out-of-pocket expenses incurred in performing the Services. Expenses are billed at cost, without markup, and are supported by receipts on request.

5. Taxes. Fees do not include sales, use, value-added, goods and services or similar taxes. the Client is responsible for all such taxes other than taxes based on the Supplier's net income, property or employees.

6. Term and Termination. This Agreement begins on the Effective Date and continues until terminated as provided here. Either party may terminate this Agreement or any SOW for convenience on thirty (30) days' written notice. Either party may terminate immediately on written notice if the other party materially breaches this Agreement and does not cure the breach within fifteen (15) days after receiving notice describing it. On termination, the Client will pay for all Services performed and expenses incurred through the effective date of termination.

7. Confidentiality. Each party may receive non-public information of the other party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving party will use Confidential Information only to perform or receive the Services, will protect it with at least reasonable care, and will disclose it only to its personnel and advisors who need to know it and are bound by duties of confidentiality at least as protective as these. These obligations do not apply to information that is or becomes public through no fault of the receiving party, was known to it before disclosure, is independently developed, or is rightfully received from a third party without restriction. A party may disclose Confidential Information when required by law, after giving the other party prompt notice where legally permitted.

8. Intellectual Property. Upon full payment, the Client owns the final deliverables identified in an SOW as created specifically for the Client (the "Deliverables"). the Supplier retains all rights in its pre-existing materials, tools, templates, know-how and general skills ("the Supplier Materials"). To the extent any the Supplier Materials are incorporated into a Deliverable, the Supplier grants the Client a non-exclusive, perpetual, royalty-free license to use them as part of that Deliverable for the Client's internal business purposes.

9. Warranties. the Supplier warrants that the Services will be performed in a professional and workmanlike manner consistent with generally accepted industry standards. the Client's exclusive remedy for breach of this warranty is re-performance of the non-conforming Services, provided the Client notifies the Supplier in writing within thirty (30) days after the Services were performed.

10. Disclaimer. EXCEPT AS EXPRESSLY STATED IN THIS AGREEMENT, NEITHER PARTY MAKES ANY WARRANTY, EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE OR NON-INFRINGEMENT. THE SUPPLIER DOES NOT WARRANT THAT ANY RESULT OR OUTCOME WILL BE ACHIEVED.

11. Limitation of Liability. IN NO EVENT WILL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR PUNITIVE DAMAGES, OR FOR LOST PROFITS OR REVENUE, EVEN IF ADVISED OF THEIR POSSIBILITY. EACH PARTY'S TOTAL LIABILITY ARISING OUT OF THIS AGREEMENT WILL NOT EXCEED THE FEES PAID OR PAYABLE UNDER THIS AGREEMENT IN THE TWELVE (12) MONTHS BEFORE THE EVENT GIVING RISE TO THE CLAIM. THESE LIMITS DO NOT APPLY TO A PARTY'S INDEMNIFICATION OBLIGATIONS OR TO THE CLIENT'S OBLIGATION TO PAY FEES.

12. Indemnification. Each party will defend and indemnify the other party and its officers, employees and agents against third-party claims, and the resulting losses, damages and reasonable attorneys' fees, to the extent arising from the indemnifying party's gross negligence, willful misconduct or violation of law. The indemnified party will give prompt notice of the claim, reasonable cooperation, and sole control of the defense to the indemnifying party.

13. Insurance. During the term the Supplier will maintain commercial general liability insurance and professional liability insurance with limits not less than one million dollars ($1,000,000) per claim, and will provide certificates of insurance on request.

14. Non-Solicitation. During the term and for twelve (12) months afterward, neither party will knowingly solicit for employment any employee of the other party who was directly involved in the Services. General advertisements not targeted at the other party's personnel do not violate this Section.

15. Independent Contractor. the Supplier is an independent contractor. Nothing in this Agreement creates a partnership, joint venture, agency or employment relationship between the Supplier and the Client. Neither party has authority to bind the other.

16. Data Protection. If the Supplier processes personal information on behalf of the Client, the Supplier will process it only on the Client's documented instructions, will implement appropriate technical and organizational security measures, and will notify the Client without undue delay after becoming aware of a security incident affecting that information. At the end of the Services, the Supplier will return or delete such personal information unless retention is required by law.

17. Notices. Notices under this Agreement must be in writing and are effective when delivered by hand, by nationally recognized courier, or by email with confirmation of transmission, to the addresses each party designates in writing. Notices to the Supplier must be sent to the attention of its legal department.

18. Miscellaneous. This Agreement, together with each SOW, is the entire agreement between the Supplier and the Client regarding its subject matter and supersedes all prior proposals and understandings. Any amendment must be in writing and signed by both parties. If any provision is held unenforceable, the remaining provisions remain in effect. Neither party may assign this Agreement without the other party's consent, except to a successor in a merger or sale of substantially all of its assets. This Agreement may be executed in counterparts and by electronic signature, each of which is deemed an original.

19. Law. These Terms of Business are governed by the law of England and Wales and the courts of England have exclusive jurisdiction.

SIGNED for and on behalf of THORNBURY DIGITAL LTD	**SIGNED for and on behalf of the CLIENT**
Signature	Signature .....
Name	Name .....
Position	Position .....
Date	Date .....